EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 35673/15
NATIONAL TRADE UNION LABOUR INITIATIVE
against Poland

The European Court of Human Rights (First Section), sitting on 13 April 2021 as a Committee composed of:

Erik Wennerström, *President,*
Krzysztof Wojtyczek,
Lorraine Schembri Orland, *judges,*

and Liv Tigerstedt, *Deputy Section Registrar,*

Having regard to the above application lodged on 13 July 2015,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant "National Trade Union Labour Initiative" (*Ogólnopolski Związek Zawodowy Inicjatywa Pracownicza*), is a trade union registered in Poland. It was represented before the Court by Mr A. Ploszka, a lawyer practising in Warsaw.

The Polish Government ("the Government") were represented by their Agent, Mr J Sobczak of the Ministry of Foreign Affairs.

The applicant complained under Articles 10 and 11 of the Convention that the ban on its activities that were targeting a company whose employees were the trade union's members, constituted an unlawful and unjustified interference with the applicant's freedom of expression and freedom of assembly.

On 12 February 2021 and 28 December 2020 the Court received friendly settlement declarations signed by the parties under which the applicant agreed to waive any further claims against Poland in respect of the facts giving rise to this application against an undertaking by the Government to pay it 12,000 (twelve thousand) euros to cover any and all pecuniary and

non-pecuniary damage as well as costs and expenses, which will be converted into Polish zlotys at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. This sum will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the case.

THE LAW

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 20 May 2021.

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Liv Tigerstedt Deputy Registrar	Erik Wennerström President